

25CHCV04612 25CHCV04612

County: los-angeles

Division: Civil Law and Motion

Department: F49

Hearing date: 2026-07-07

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF49%2C07%2F07%2F2026

Source SHA-256: 4de183b1083c09d36cc8194ef2951cc997cc8606982be7cb09805c019fe22e26

Case Number: 25CHCV04612 Hearing Date: July 7, 2026 Dept: F49

Dept. F49

Date: 7/7/26

Case Name: Vladimir Loganov vs. Walmart Inc.; Wal-Mart

Real Estate Business Trust; PRTC, L.P.; Athena Property Management, LLC;

Enterprise Rent-A-Car of Los Angeles, LLC; Ferdinand Padilla; and Does 1-100

Case No. 25CHCV04612

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 7, 2026

APPLICATION FOR

ADMISSION PRO HAC VICE

Los Angeles Superior

Court Case No. 25CHCV04612

Motion filed: 6/3/26

MOVING PARTY: Defendants Walmart, Inc. and Walmart Real

Estate Business Trust

RESPONDING PARTY: None

NOTICE: Incomplete

RELIEF REQUESTED: An order from this Court admitting Matthew C. Behncke of Susman Godfrey LLP to appear as counsel pro hac vice in this matter.

TENTATIVE RULING: The Application is CONTINUED.

BACKGROUND

This action arises from personal injuries allegedly sustained by Plaintiff Vladimir Loganov ("Plaintiff") when he was struck by a motor vehicle while crossing an access road on property controlled and operated by Walmart, Inc. ("Walmart"), Walmart Real Estate Business Trust ("Walmart Trust"), and Athena Property Management, LLC ("Athena"). On December 23, 2025, Plaintiff filed the Complaint against Defendants Walmart, Walmart Trust, PRTC, L.P. ("PRTC"), Athena, Enterprise Rent-A-Car of Los Angeles, LLC, Ferdinand Padilla, and Does 1 through 100, alleging the following causes of action: (1) motor vehicle negligence, (2) general negligence, and (3) premises liability.

On February 17, 2026, Walmart and Walmart Trust filed their joint Answer.

On February 18, 2026, PRTC concurrently filed its Answer and a Cross-Complaint against Roes 1 through 25 for equitable/implied indemnity, apportionment and contribution, and declaratory relief.

On June 3, 2026, Walmart and Walmart Trust filed the instant Application to Admit Matthew C. Behncke Pro Hac Vice (the "Application").

No objection or opposition to the Application has been filed.

ANALYSIS

“A

person who is not a licensee of the State Bar but who is an attorney in good standing and eligible to practice before the bar of any United States court or the highest court in any state ... and who has been retained to appear in a particular cause pending in a court of this state, may in the discretion of such court be permitted upon written application to appear as counsel pro hac vice, provided that an active licensee of the State Bar is associated as attorney of record.” (Cal. Rules of Court, rule 9.40(a).)

A

person who is a resident of the State of California or is regularly employed or regularly engaged in substantial business, professional, or other activities in the State of California is ineligible for admission pro hac vice. (Cal. Rules of Court, rule 9.40(a).) “Absent special circumstances, repeated appearances by any person under this rule is a cause for denial of an application.” (Id., rule 9.40(b).)

A.

Application for Admission Pro Hac Vice

Walmart and Walmart Trust seek admission of their counsel, Matthew C. Behncke (“Behncke”), pro hac vice in this matter.

(1)

Contents
of Application

An application to appear as counsel pro hac vice
must include:

(1) The

applicant's residence and office address;

(2) The

courts to which the applicant has been admitted to practice and the dates of admission;

(3) That

the applicant is a licensee in good standing in those courts;

(4) That

the applicant is not currently suspended or disbarred in any court;

(5) The

title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and

(6) The

name, address, and telephone number of the active licensee of the State Bar who is attorney of record.

(Cal. Rules of Court, rule 9.40(d).)

Here, Behncke's application does not meet the foregoing content requirements. While he lists three instances in the past two years in which he has been admitted pro hac vice to appear in courts within the state, he does not indicate the dates of these applications or whether the admissions represent all applications for admission pro hac vice filed within the past two years. (Behncke Decl., ¶ 7.) The Court accordingly has insufficient information to evaluate whether Behncke's appearances are repeated within the meaning of rule 9.40(b).

(2)

Eligibility

Behncke is a member in good standing of the following courts: (1) the State Bar of Texas, (2) the United States Court of Appeals for the Fifth Circuit, (3) the United States Court of Appeals for the Sixth Circuit, (4) the United States Court of Appeals for the Federal Circuit, (5) the United States District Court for the Eastern District of Texas, and (6) the United States District Court for the Southern District of Texas. (Behncke Decl., ¶¶ 3-4.) He attests that he is not currently suspended or disbarred by any court. (Id., ¶ 5.)

Behncke further attests that he is a Texas resident and does not regularly engage in the practice of law or any other business in the State of California. (Behncke Decl., ¶¶ 1, 6.) Behncke indicates that, within the past two years, he has been admitted pro hac vice in the state and

federal courts within the State of State of California and lists three actions in which he has been admitted pro hac vice. (Id., ¶ 7.) However, he does not state whether these actions represent all applications for admission pro hac vice or indicate when these applications were made. (See Cal. Rules of Court, rule 9.40, subd. (d)(5).) The Court thus has insufficient information to determine whether Behncke meets the eligibility requirements for admission pro hac vice.

(3)

Verification
and Service of Application

A verified application to the Superior Court to appear as counsel pro hac vice must be filed “together with proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of the application and of the notice of hearing of the application on all parties who have appeared in the cause and on the State Bar at its San Francisco office.” (Cal. Rules of Court, rule 9.40(c)(1).) “[N]otice of [the] hearing must be given at the time prescribed in Code of Civil Procedure section 1005 unless the court has prescribed a shorter period.” (Ibid.)

The proof of service attached to the Application indicates that it was served by email on Plaintiff’s counsel and counsel for PRTC on June 3, 2026. However, rule 9.40(c) requires service by mail. Electronic service is accordingly insufficient to satisfy the requirements of the rule, and service is therefore incomplete. Moreover, there is no proof of service on the State Bar of California. While associated counsel Heather N. Seigler attests that she served the application on the San Francisco offices of the State Bar, (Seigler Decl., ¶ 5), there is no indication of when or how service was effectuated. (Code Civ. Proc., § 1013a, subd. (1) [requiring proof of service to show the date and place of deposit in the mail, the exact title of the document served, and the name and address of the recipient].)

Based on the foregoing, the Court CONTINUES the Application to allow counsel to address the noted deficiencies.

CONCLUSION

The Court CONTINUES Defendant’s Walmart, Inc. and Walmart Real Estate Business Trust’s Application to Admit Matthew C. Behncke Pro

Hac Vice.

Moving party to give notice.